

API Licence, Services and Marketing Agreement

Galaxy108 Pty Ltd (Xituan)

Commencement

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API LICENCE, SERVICES & MARKETING AGREEMENT

Between:

Australian Postal Corporation

of 480 Swan Street
RICHMOND, VICTORIA, 3121
("Australia Post")

and:

The party named in the Schedule entitled "Variable Details"
("Licensee")

INTRODUCTION

- A. Australia Post and its Related Entities provide parcel delivery and related services ("**Australia Post Services**"), and may from time to time expose certain application programming interfaces to permit third parties to integrate with, and access the Australia Post Services (the "**APIs**").
- B. The Licensee offers technical integration, label printing and other related services including but not limited to eCommerce software, logistics, shipping and fulfilment services ("**Licensee Services**") to its merchant and other customers who wish to access and use Australia Post Services.
- C. The Licensee wishes to enter into a licence with Australia Post for use of the APIs in order to allow End Users to integrate with and access the Australia Post Services.

IT IS AGREED

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement:

Access Credential means the authorisation credentials, whether in the form of password, digital password, security token, API Key or other digital security code supplied by Australia Post to access the APIs. Access Credential includes access credentials provided to the Licensee and access credentials supplied by Australia Post to Authorised End Users or to any other party.

Agreement means this agreement for the licence of APIs and related services;

API means the application programming interfaces described in paragraph A of the Introduction;

Australia Post Branding means the branding, logos and all associated trade marks and other intellectual property rights used by Australia Post in the advertising, marketing and promotion of its services and products including the Australia Post Services.

Australia Post Developer Centre means the website accessed through the following URL (as may be updated from time to time): <https://developers.auspost.com.au/>

Australia Post Representative means the person specified as such in the Schedule entitled "Variable Details", or such other person appointed from time to time as notified to the Licensee;

Australia Post Services has the meaning given in paragraph A of the Introduction;

Authorised End User means an End User who has a Parcel Agreement and/or (if applicable) has a MyPost Business Account with Australia Post and has received an Access Credential from Australia Post;

Business Day means a day that is not a Saturday, Sunday or any other day which is a public holiday or a bank holiday in the place where an act is to be performed or a payment is to be made;

Commencement Date means the date specified in the Schedule entitled "Variable Details";

Confidential Information means all data and information that a party (the **Recipient**) may be provided access to, from the other party (the **Disclosing Party**) which the Disclosing Party considers of a confidential nature including, but not limited to: all non-public and proprietary information, including customer information of any kind whatsoever, business practices, software, technical information, future product and service plans, programming and design techniques or plans, know-how, trade secrets, employees, compensation, benefits, pricing and discounting practices and information that can deduce the pricing, the terms of this Agreement, customer support issues, Licensees, customers, end user, development plans or projects, services, that is specifically identified as confidential or would be understood to be confidential by a reasonable person under the circumstances. Confidential Information may be communicated in writing or in any other recorded or tangible form. To avoid doubt, Confidential Information of Australia Post includes the Access Credentials, all documentation relating to the APIs (including login details, passwords and Access Credentials) excluding the documents that are published in the public and generally accessible part (without any username and password) of the website of Australia Post.

Current APIs means the APIs set out in clause 5.1:

Disclosing Party has the meaning given in the definition of Confidential Information;

End User means a merchant or other customer who currently procures or wishes in future to procure Licensee Services from the Licensee and who currently accesses or who may in future wish to access Australia Post Services, and includes Authorised End Users;

Expiration Date means the date specified in the Schedule entitled "Variable Details";

Information Security Incident has the meaning given in Schedule 2.

Initial Term has the meaning in clause 2.1;

Intellectual Property Rights means all intellectual property rights subsisting anywhere in the world including, without limitation:

- (a) copyright, trade marks, patents, inventions, design rights, rights in databases, circuit layout designs; and
- (b) any application or right to apply for registration of any of the rights referred to in paragraph (a);

Licence has the meaning given in clause 3;

Licensee's Representative means the person specified as such in the Schedule entitled "Variable Details", or such other person appointed from time to time as notified to Australia Post;

Licensee's Services has the meaning given in paragraph B of the Introduction;

MyPost Business means the on-line platform offered by Australia Post to its customers and related on-line services which can be accessed at <https://auspost.com.au/mypost-business> (as may be updated from time to time) and through Australia Post retail outlets;

MyPost Business Account means the account held by an Australia Post MyPost Business customer in accordance with the terms and conditions applying to use of the MyPost Business services

Parcel Agreement means an agreement with Australia Post or a Related Entity for the provision of Australia Post Services;

Privacy Act means the *Privacy Act 1988* (Cth) of Australia;

Privacy Laws means all Commonwealth, State and Territory legislation, principles, industry codes and policies relating to the collection, use, disclosure, storage or granting of access rights to the Personal Information (as defined in the Privacy Act) including, but not limited to the Privacy Act and the Australian Privacy Principles in it;

Product Information means all information, details and instructions published or otherwise communicated by Australia Post which is required to be followed for the lawful and proper use of the Australia Post Services.

Recipient has the meaning given in the definition of Confidential Information;

Related Entities means Star Track Express Pty Limited, Australia Post's Global eCommerce businesses, or any other business or company operated by Australia Post;

Renewed Term has the meaning specified in clause 2.2;

Term means the period commencing on the Commencement Date and expiring on the Expiration Date, unless the Agreement is renewed in accordance with this Agreement, then Term is the total of the Initial Term and the Renewed Term; and

1.2 Interpretation

In this Agreement, unless the contrary intention appears:

- (a) headings are for ease of reference only and do not affect the meaning of this Agreement;
- (b) the singular includes the plural and vice versa;
- (c) other grammatical forms of defined words or expressions have corresponding meanings;
- (d) if an act must be done on a specified day that is not a Business Day, the act must be done instead on the next Business Day;
- (e) a reference to a clause, paragraph, schedule, appendix or annexure is a reference to a clause or paragraph of or schedule, appendix or annexure to this Agreement and a reference to this Agreement includes any schedules, appendices and annexures;
- (f) a reference to a document or Agreement, including this Agreement, includes a reference to that document or Agreement as novated, altered or replaced from time to time;
- (g) a reference to "A\$", "\$A", "dollar" or "\$" is a reference to Australian currency;
- (h) a reference to a specific time for the performance of an obligation is a reference to that time in the State, Territory or other place where that obligation is to be performed;
- (i) a reference to a party includes its executors, administrators, successors and permitted assigns;
- (j) a reference to one gender includes the other gender;
- (k) words and expressions importing natural persons include partnerships, bodies corporate, associations, governments and governmental and local authorities and agencies;
- (l) "includes", "including", and similar words are not words of limitation;
- (m) a reference to any legislation or statutory instrument or regulation ("Statutory Provision"):
 - (i) is construed in accordance with the Acts Interpretation Act 1901 (Cth) or the equivalent State legislation, as applicable; and
 - (ii) includes:
 - (A) that Statutory Provision as amended or re-enacted from time to time;
 - (B) any subordinate legislation made under that Statutory Provision;
 - (C) a statute, regulation or provision enacted in replacement of that Statutory Provision; and
- (n) a reference to writing includes typewriting, email, printing, lithography, photography and any other method of representing or reproducing words, figures or symbols in a permanent and visible form.

2. TERM

- 2.1 This Agreement commences on the Commencement Date and subject to clause 13 (**Termination**), continues until the Expiration Date unless terminated earlier ("**Initial Term**").
- 2.2 This Agreement supersedes and replaces in their entirety any and all prior agreements, arrangements or understandings regarding this Agreement's subject matter.
- 2.3 At the end of the Initial Term, the Agreement will automatically renew for a further 2 year term ("**Renewed Term**"), unless either party gives notice to the other party at least ninety (90) days prior to the renewal that it does not wish to renew the Agreement.

3. LICENCE

Subject to the terms and conditions and restrictions set out in this Agreement, Australia Post grants to the Licensee a non-exclusive, worldwide, royalty-free, and subject to clause 4.3, a non-transferable licence during the Term to use the APIs, the Access Credentials, and any related documentation, for the sole purpose of:

- (a) integration between the Licensee's Services and Australia Post Services to facilitate End User access via the APIs to the Australia Post Services; and
- (b) non-production access for development, testing, maintenance and demonstration and production access to the Australia Post Services.

("Licence").

4. LICENCE CONDITIONS & RESTRICTIONS

The licence granted under clause 3 is subject to the following restrictions and conditions:

- 4.1 Unless authorised in writing by Australia Post, the Licensee must not use the APIs for any End User who is a shipping aggregator, e-commerce platform provider, intermediary, parcel data management platform, or similar provider (a "3PPlatform"). End Users must be using Australia Post Services to deliver products they market, sell and distribute. Where the Licensee wishes to obtain Australia Post's approval to give access to Australia Post's APIs under this Agreement to a 3PPlatform, the parties will follow the process and requirements set out in Schedule 3.
- 4.2 Subject to clause 4.3, the Licensee must not provide or provide access to Access Credentials to any third party, including any End User.
- 4.3 The Licensee must take all reasonable steps to ensure all Authorised End Users each have their own user accounts with Australia Post. The Licensee must not enable, permit or facilitate multiple End Users from consolidating Parcel volumes under a single account or any multi-use accounts of any type.
- 4.4 The Licensee may engage third parties to support the development and maintenance of production and non-production integrations with the APIs, and may provide Access Credentials to relevant third parties for that purpose, provided the third parties agree to comply with the licence conditions set out in this Agreement.
- 4.5 The Licensee acknowledges that it has no right, title or interest in or to the APIs nor Australia Post Services, nor any other material supplied by Australia Post to the Licensee under this Agreement, except as expressly provided under this Agreement. In particular, the Licensee acknowledges that the API, sample code, documentation, and trade marks/logos displayed or made available by Australia Post or produced in hardcopy form by Australia Post and the Australia Post data, are the Intellectual Property Rights of Australia Post and are protected under intellectual property laws. The information and images presented or received via the API or the Australia Post Services may not be reproduced, republished, adopted, used or modified under any circumstances, and the Licensee must not reverse engineer, decompile, disassemble or otherwise interfere with any API.
- 4.6 The Licensee must disclose to Authorised End Users the fees charged for the Australia Post Services and the Licensee Services accurately and separately.
- 4.7 The Licensee must not use the APIs in any way that adversely affects their performance or function.
- 4.8 The Licensee must not post or transmit information or materials that would breach rights of any third party or which contains a virus or other harmful component.
- 4.9 Where requested, the Licensee must provide Australia Post with complete, accurate and up-to date information about the Authorised End Users' volumes, freight and dispersion profile.
- 4.10 The Licensee must ensure that:
 - (a) for Authorised End Users, the terms of any contract for the Licensee Services reflect that Australia Post or a Related Entity has a direct contractual relationship with that Authorised End User relating to the provision of Australia Post Services;
 - (b) it does nothing to interfere with the terms of any Parcel Agreement with an Authorised End User;
 - (c) it does nothing to interfere with the access and use of the MyPost Business services by an Authorised End User;
 - (d) the Licensee Services are provided in a manner which ensures that Australia Post is always aware to whom it is providing the Australia Post Services; and
 - (e) any integration by the Licensee to an API, will facilitate timely transmission to Australia Post of accurate manifests containing shipment data it requests, and compliant documentation (including labels, barcodes and driver documents).
- 4.11 The Licensee will cooperate with Australia Post to monitor, minimise and combat the misuse or fraudulent use of the Australia Post Services purchased through the Licensee's platform such as End Users misrepresenting the nature of parcels (including size and weight) in order to incur a lower price, reusing Australia Post labels for multiple deliveries and cancelling Australia Post labels after a parcel or parcels are lodged.
- 4.12 Without limiting the foregoing, the parties acknowledge that:

- (a) subject to the conditions and restrictions set out in this Agreement (and any requirements for the Australia Post Services), the design, delivery and functionality of any integration to the APIs shall be at the Licensee's sole discretion and risk;
 - (b) the Licensee is under no obligation to develop or release any integration to any APIs but may elect to do so in its sole discretion; and
 - (c) as between Australia Post and the Licensee, the Licensee is solely responsible for the terms of its agreement with End Users in relation to the use of the Licensee's Services.
- 4.13 The Licensee is not authorised to bind Australia Post in any way with respect to any End Users or any other person, and must not make any representations or give any warranty in respect of the Australia Post Services or the APIs.
- 4.14 The Licensee:
 - (a) must keep the Access Credentials safe and secure and immediately notify Australia Post in writing:
 - (i) of any breach, or suspected breach of this obligation; or
 - (ii) where a person who is not authorised has been given access to, or is suspected of having been given access to, any Access Credentials or to the APIs; and
 - (b) is liable to Australia Post or where applicable, any End User for the use of the Access Credentials by any person to whom Licensee provides or provides access to the Access Credentials;

5. APIS AND FUTURE RELEASES

- 5.1 As at the Commencement Date the APIs include the following features:
 - (a) pricing,
 - (b) suburb validation,
 - (c) label creation,
 - (d) shipment/order creation/manifest,
 - (e) pick-ups,
 - (f) tracking; and
 - (g) parcel collection services.

("Current APIs")
- 5.2 Australia Post may release new or updated APIs from time to time.
- 5.3 If, after the Commencement Date, Australia Post, releases new APIs or additional features for the Current APIs, then the Licensee acknowledges that it will be at Australia Post's sole discretion as to whether the Licensee will have access to them. If the Licensee has been given access to the new or updated APIs, their use will be governed by the terms of this Agreement. The Licensee may (at its discretion) elect to provide End Users with access to the new or updated APIs.
- 5.4 Where Australia Post modifies APIs being used by the Licensee that will materially and adversely impact their functionality, it will provide the Licensee reasonable notice of those changes.
- 5.5 Where it gives notice of its intention to decommission an API, Australia Post will continue to support that API for a period of not less than one year.
- 5.6 While the Licensee is not obliged to update or modify its integration to reflect any modifications to the APIs, it acknowledges that a failure to do so may mean that the API functionality or integration ceases to operate as originally intended.
- 5.7 The Licensee acknowledges that Australia Post may rename the business bundles or consolidate the APIs within the business bundles from time to time.
- 5.8 Australia Post may suspend:
 - (a) the Licensee's access to the APIs where Australia Post believes it is required, including for data protection or security, maintenance, or to ensure sustainability of the APIs and the Australia Post Services; or
 - (b) the Licensee's and any Authorised End User access to the APIs, where parcels are presented in a way that does not comply with (i) Australia Post's (or a Related Entity's) operational requirements, including

those related to parcel contents, packaging, labelling (e.g. barcodes and addressing standards), or (ii) any applicable laws.

- 5.9 If the Licensee wishes to include any new API or updated under this Agreement, the parties will discuss the Licensee's request. Australia Post acknowledges the parties' mutual benefit in permitting the Licensee to create integrations for new APIs, but the Licensee acknowledges that Australia Post may, restrict access to certain new APIs.

6. SUPPORT

- 6.1 During the Term, Australia Post will provide Licensee with technical support for the APIs in accordance with Australia Post's support terms and targets available at the Australia Post's Developer Centre, as updated from time to time.
- 6.2 The Licensee is responsible for providing technical support to its End Users.
- 6.3 Licensee acknowledges that the response times set out on the Australia Post Developer Centre are target times that apply to the APIs as at the Commencement Date. Different response time targets may apply for new or updated APIs. Australia Post will use its best endeavours to ensure that the response time targets for any new APIs or updated APIs are similar to the response time targets for the Current APIs.

7. PRIVACY AND CUSTOMER DATA

- 7.1 Each party must comply with all applicable Privacy Laws, and even if a party is not bound by a Privacy Law for any reason it will still act as if it were bound.
- 7.2 The Licensee agrees to indemnify and keep indemnified Australia Post against, and must pay Australia Post on demand the amount of, all losses, liabilities, costs (including legal costs) expenses and damages incurred or arising in connection with any breach of the Licensee's obligations under this clause 7. It is not necessary for Australia Post to incur expense or make payment before enforcing this indemnity.
- 7.3 **Customer Data.** The parties acknowledge that:
- (a) as part of using the Licensee's Services, End Users may disclose and share various data and information, including personally identifiable information (PII), with the Licensee as a data processor ("**Licensee Collected Information**"); and
 - (b) as part of using the integration with the APIs and the Australia Post Services, End Users may disclose and share various data and information, including PII, with Australia Post ("**Australia Post Collected Information**").
- 7.4 Licensee acknowledges that Australia Post Collected Information is data of Australia Post, and Australia Post acknowledges that Licensee Collected Information is considered customer data of Licensee.
- 7.5 The Licensee agrees that Licensee Collected Information acquired in accessing Australia Post Services and APIs is to be used by the Licensee for the sole purpose of providing Licensee Services to End Users.
- 7.6 The Licensee agrees to securely store Access Credentials in accordance with the information security requirements set out in Schedule 2

8. PUBLICITY, MARKETING & COOPERATION

- 8.1 The Licensee must not seek or engage in publicity or advertising, or make any public statement in connection with this Agreement unless authorised by Australia Post in writing and then only in a form approved at the discretion of Australia Post. For the avoidance of doubt, the Licensee may not include information about any developed integration, Australia Post's name and the Australia Post Services on its website and with Licensee marketing materials, including but not limited to, press releases and Licensee Australia Post lists, without first obtaining the consent of Australia Post.
- 8.2 **Representation of Australia Post Services.** When surfacing and offering the Australia Post Services to End Users, the Licensee will:
- (a) actively cooperate with Australia Post to grow the number of End Users using the Australia Post Services;
 - (b) accurately and fairly represent the Australia Post Services on the Licensee's platform;

- (c) ensure that where the Australia Post Services meet an Authorised End User's requirements, that they are properly and fairly displayed and made available to the Authorised End User
- (d) not knowingly misrepresent the Product Information and estimated transit times;
- (e) not take any steps to actively divert or stream Authorised End Users away from using the Australia Post Services, including distinguishing between metropolitan and regional delivery services available when using the Australia Post Services;
- (f) where the Licensee agrees to offer additional or improved Australia Post Services, it will do so promptly, fairly and accurately;
- (g) ensure that the Australia Post Branding is accurately represented; and
- (h) not make any disparaging comments about Australia Post or the Australia Post Services.

8.3 **Tracking Information.** The right to access and receive the tracking information generated by Australia Post belongs to the sender and the receiver of individual parcels. Tracking information generated as a result of use of Australia Post's Services under this Agreement is only available to the Authorised End User who has consigned a particular parcel and only through the Access Credential of that Authorised End User, in addition to the tracking rights of the receiver of a parcel. The Licensee will take no action to prevent Authorised End Users from accessing their tracking information. Unless otherwise agreed by Australia Post, the Licensee must not seek to charge Authorised End Users for the provision of tracking information.

8.4 **Agreed Marketing Activities.** Prior to implementing any joint marketing initiatives relating to the Australia Post Services, the parties will agree in writing on how and when those initiatives will be carried out and the responsibilities of each party to implement those initiatives. Unless otherwise agreed, each party will be responsible for its own costs and expenses associated with implementing the agreed marketing initiatives.

8.5 **No implied endorsements.** Unless otherwise expressly authorised in advance in writing by the other party, a party will not in any way express or imply that any opinions contained in that the party's promotional activities are endorsed by the other party.

8.6 **Name of the other party.** Each party is prohibited from using or registering any trademarks or trade names of the other party, or alterations thereof, including as or as part of the party's company or business name, service name, trade name, or product name.

8.7 Neither party authorises the other party to use any of the party's trade marks to promote or use for search engine ranking or ad word purchase or as part of a trade name, business name or Internet domain name without the other party's prior written consent, whose consent is at their discretion.

8.8 If a party registers or otherwise obtains rights to marks (as trademarks, service marks, URLs, company names or otherwise) in violation of this Agreement, that party will, at its own expense, transfer and assign such rights to the other party, and execute all documents reasonably requested by the other party to facilitate such assignment or transfer.

9. SECURITY

9.1 The Licensee represents that it has and will use mature secure development lifecycle processes and appropriate security practices in connection with storage of Access Credentials, integrating to the APIs, providing the Licensee Services and in the performance of its obligations under this Agreement and at a minimum, the Licensee will meet the information security requirements as set out in Schedule 2.

9.2 Upon reasonable request from either party, the security team of each party will meet to review the Licensee's security practices in connection with the subject matter of this Agreement.

10. CONFIDENTIAL INFORMATION

10.1 The Recipient agrees that during the Term of the Agreement, it will only use Confidential Information in order to perform its obligations, and exercise its rights under this Agreement.

10.2 The Recipient agrees to take all reasonable precautions to protect the confidentiality of the Confidential Information, which precautions will in any event, be no lower a standard than is required to comply with this Agreement.

- 10.3 The Recipient will restrict access to Confidential Information only to employees, contractors or third party fiduciary representatives who need to know. Any employees, contractors or third party fiduciary representatives performing under this Agreement must be bound by obligations of confidentiality substantially similar to the terms and conditions wherein such persons in advance of being granted access to such Confidential Information agree not to disclose any Confidential Information.
- 10.4 The obligations in this clause do not apply to information that:
- (a) is or falls into the public domain through no wrongful act or negligence of either party prior to the disclosure of Confidential Information;
 - (b) is rightfully received from a third party without restriction and without breach of any obligations of confidence;
 - (c) is approved for release by written authorisation of an officer of the Disclosing Party;
 - (d) is already in the other party's possession as evidenced by its records and is not the subject of a separate non-disclosure Agreement;
 - (e) is required to be disclosed by law or any government or governmental body, authority, agency or stock exchange having authority over a party, however the Receiving Party will need to notify the Disclosing Party prior to disclosure; or
 - (f) is independently developed by a party.

11. LIMITATION OF LIABILITY & INDEMNITY

- 11.1 The Licensee is liable for any loss suffered by Australia Post arising from the misuse of the APIs or the Access Credentials by any End User to which the Licensee has provided or permitted access.
- 11.2 To the maximum extent permitted by law, Australia Post will have no liability for any losses (including, without limitation, direct, indirect, special, consequential damages or any other pecuniary loss) that results from the use or inability to use or access the APIs.
- 11.3 The Licensee indemnifies Australia Post against any loss, cost, expense, damage, claim, demand, action or proceeding arising out of:
- (a) the Licensee or any End User failing to comply with this Agreement; and
 - (b) any End User claim arising from an inability to use or access the APIs for any reason.
- 11.4 If statute implies terms into this Agreement that cannot lawfully be excluded, the liability of Australia Post to the Licensee or any End User, for a breach of any such implied term, is limited (at Australia Post's option) to:
- (a) the resupply of the Australia Post Services; or
 - (b) the payment of the cost of resupplying the Australia Post Services.

12. REPRESENTATIONS AND WARRANTIES

- 12.1 **The Licensee Representations and Warranties.** The Licensee represents and warrants to Australia Post that:
- (a) it is duly organised, validly existing and in good standing under the laws of the state of its domicile and is in good standing in each other jurisdiction in which such qualification is required by law;
 - (b) it has power and authority to transact the business it transacts and proposes to transact and to execute and deliver this Agreement and to perform its obligations under this Agreement;
 - (c) it owns or possesses all Intellectual Property Rights and other rights necessary to provide the Licensee Services to End Users; and
 - (d) it will not infringe any third party Intellectual Property Rights in creating, developing, maintaining and supporting the integration of the APIs.
 - (e) it has obtained all necessary consent from End Users, senders and/or addressees in order to collect and use personal information for tracking and delivery services.
- 12.2 **Australia Post Representations and Warranties.** Australia Post represents to the Licensee that:
- (a) it is duly organised, validly existing and in good standing under the laws of the state of its domicile and is in good standing in each other jurisdiction in which such qualification is required by law;

- (b) it has power and authority to transact the business it transacts and proposes to transact as set out in this Agreement and to execute and deliver this Agreement and to perform its obligations under this Agreement;
- (c) it owns or is licensed to all Intellectual Property Rights necessary to grant the Licensee the licence on the terms set out in this Agreement.

13. TERMINATION

13.1 Termination for Breach

A party may terminate this Agreement by written notice to the other if:

- (a) the other party breaches any of its material obligations under this Agreement, and the breach is not capable of remedy;
- (b) the other party breaches any of its material obligations under this Agreement (which is capable of remedy), but fails to remedy that breach within 5 Business Days (or such other time as agreed by the parties in writing) after receipt of written notice from the non-breaching party giving full particulars of the breach and requiring it to be remedied; or
- (c) an Insolvency Event occurs in relation to the other party.

13.2 In clause 13.1(c) "Insolvency Event" means any of the following events occurs in respect of a party:

- (a) a receiver or receiver and manager or administrator, trustee or other controller is appointed to all or any part of the assets or undertakings of the party;
- (b) the party enters into any scheme of arrangement with its creditors or any class of them or indicates its intention of endeavouring to do so;
- (c) the party suspends payment of its debts or is unable to pay its debts when they are due, or is or becomes unable to pay its debts within the meaning of the Corporations Act 2001;
- (d) a provisional liquidator is appointed to the party;
- (e) an application or order is made for the winding up or dissolution of a party, or a resolution is passed or any steps are taken to pass a resolution for the winding up or dissolution of a party, except for the purpose of an amalgamation or reconstruction which has the other party's prior written consent; or
- (f) the party ceases, or threatens to cease, to carry on business.

13.3 Termination for Convenience

Either party may terminate this Agreement at any time on 30 days' written notice to the other party.

13.4 Consequences of Termination

If this Agreement terminates for any reason or expires, each party:

- (a) is released from its obligations to further perform this Agreement (as applicable);
- (b) retains its accrued rights and obligations; and
- (c) retains the rights it had against the other party in respect of any past breach, in addition to any other rights provided by law.

13.5 On termination or expiry of this Agreement, subject to Australia Post agreeing in writing otherwise, the licence granted under this Agreement automatically lapses and Australia Post may cancel the Access Credential, and the Licensee must immediately:

- (a) cease making the APIs available to End Users;
- (b) cease using the APIs;
- (c) cease using any associated documentation and trade marks/logos; and
- (d) destroy all copies of any associated documentation and trade marks/logos in its control or possession.

13.6 The following clauses survive the expiry or early termination (as the case may be) of this Agreement;

- (a) The clause entitled "Definitions and Interpretation";
- (b) The clause entitled "Privacy and Customer Data";
- (c) The clause entitled "Confidential Information";

- (d) The clause entitled "Representations and Warranties";
- (e) The clause entitled "Limitation of Liability";
- (f) The clause entitled "Termination";
- (g) The clause entitled "Notices";
- (h) The clause entitled "GST";
- (i) The clause entitled "Governing Law and Jurisdiction".

14. FORCE MAJEURE

- 14.1 A party ("**Affected Party**") is not liable for any delay or failure to perform an obligation (other than to pay money) or failure to make available any service under this Agreement caused by an event which is not within the reasonable control of an Affected Party and which could not reasonably have been prevented by that party, which includes acts of God, war, acts of terrorism, extreme weather conditions, floods, earthquakes, fire, government action and industrial disputes (each an "**Event**").
- 14.2 The Affected Party must notify the other party as soon as practicable of any anticipated delay or failure caused by an Event. A notice of the Event served by the Licensee is to be signed by the Licensee's Representative and delivered to Australia Post. A notice of the Event served by Australia Post is to be signed by its authorised representative and delivered to the Licensee's Representative.
- 14.3 The performance of the Affected Party's obligation is suspended for the period of delay caused by the Event, provided however that the Affected Party must keep the other party fully informed of its plans to work around the issues caused by the Event and comply with all reasonable requests made by the other party to prevent, or minimise the impact of, the Event.
- 14.4 If a delay caused by an Event exceeds 2 months, either party may terminate this Agreement at the expiration of not less than 5 Business Days' notice to the other party. A notice of termination served by the Licensee is to be signed by the Licensee's Representative and delivered to Australia Post. A notice of termination served by Australia Post is to be signed by Australia Post's Representative and delivered to the Licensee's Representative.

15. VARIATION

- 15.1 An amendment or variation to this Agreement is not effective unless it is in writing and signed by an authorised representative of Australia Post and an authorised representative of the Licensee.

16. NOTICES

- 16.1 A notice, consent or other communication under this Agreement is only effective if it is:
- (a) in writing;
 - (b) addressed in accordance with clause 16.3; and
 - (c) either:
 - (i) hand delivered;
 - (ii) delivered or sent by pre-paid mail to that person's address; or
 - (iii) sent by electronic mail.
- 16.2 A notice, consent or other communication that complies with this clause is regarded as given and received:
- (a) if it is delivered or sent by e-mail:
 - (i) by 6.00 pm (local time in the place of receipt) on a Business Day - on that day; or
 - (ii) after 6.00 pm (local time in the place of receipt) on a Business Day, or on a day that is not a Business Day - on the next Business Day; and
 - (b) if it is hand delivered - on actual receipt; and
 - (c) if it is sent by pre-paid mail:
 - (i) within Australia - on the second Business Day after it was posted; or
 - (ii) to or from a place outside Australia – 5 Business Days after posting.

- 16.3 Notices must be sent to the specific representative of the party that is identified in the relevant clause of this Agreement to which that notice relates. Where this Agreement does not specify a specific representative of the party to whom the notice is to be addressed, the notice must be sent to:
- (a) for Australia Post - at the address specified in the Schedule entitled "Variable Details"; or
 - (b) for the Licensee - the Licensee's Representative at the address specified in the Schedule entitled "Variable Details".
- 16.4 A notice, consent or other communication delivered or sent is treated as validly given or received even if the addressee has been liquidated or deregistered or is absent from the place at which the notice, consent or other communication is delivered or sent or the notice, consent or other communication is returned unclaimed.
- 16.5 A notice, consent or other communication by a party may be given or may be signed by the solicitor for the party.
- 16.6 A notice, consent or other communication to a party may be given to the solicitor for the party by any of the means listed above to the solicitor's business address.

17. GST

- 17.1 This clause applies in the event GST applies to supplies made under this Agreement.
- 17.2 Goods and Services Tax (GST) has the meaning ascribed to that term in Division 195 of the A New Tax System (Goods and Services Tax) Act 1999 ('GST Act'). Unless the contrary intention appears, words or expressions used in this clause which are defined in the GST Act have that same meaning.
- 17.3 All amounts payable under this Agreement have been calculated without including an amount for GST. In addition to any GST-exclusive amounts payable the recipient must pay an amount equivalent to the GST payable by the supplier in respect of the taxable supply.
- 17.4 The supplier of a taxable supply under this Agreement will issue a compliant tax invoice to the recipient.
- 17.5 If a supply made under this Agreement is treated as not subject to GST but is or becomes a taxable supply the supplier may charge and recover from the recipient in addition to any other consideration, an amount equivalent to the GST payable in respect of that taxable supply.
- 17.6 If in relation to a supply made under this Agreement an adjustment event occurs that gives rise to an adjustment, the price of that supply (including any GST Amount) will alter accordingly and where necessary a payment will be made to reflect the price adjustment.
- 17.7 Any non-monetary consideration given under this Agreement is GST-inclusive (unless GST-exclusive amounts are specified).
- 17.8 If non-monetary consideration is given for a taxable supply under this Agreement and the GST-inclusive market value of that consideration is not clearly identifiable, the parties must discuss and mutually agree on the GST-inclusive market value of that non-monetary consideration using Australian Tax Office ruling GSTR 2001/6 as a guide.
- 17.9 This clause survives the execution and delivery of this Agreement and the completion of the transactions contemplated by it.

18. MISCELLANEOUS

- 18.1 If anything in this Agreement is unenforceable, illegal or void, it is severed and the rest of this Agreement remains in force.
- 18.2 This Agreement is the entire agreement and understanding between the parties on everything connected with the subject matter of this Agreement and supersedes all prior agreements, Agreements, arrangements or representations regarding its subject matter.
- 18.3 The Licensee may not assign or otherwise deal with this Agreement without the prior written consent of Australia Post.
- 18.4 A change in Effective Control of the Licensee, being a change in:
- (a) more than half of the voting power of a party's board of directors;
 - (b) more than half of the voting power of a party's issued share capital; or

(c) more than half of a party's issued share capital (excluding any part thereof which carries no right to participate in the distribution of either profit or capital),
will be deemed an assignment for the purpose of sub-clause 3 of this clause.

- 18.5 A party's failure to exercise or delay in exercising a power or right does not operate as a waiver of that power or right.
- 18.6 The exercise of a power or right does not preclude either its exercise in the future or the exercise of any other power or right.
- 18.7 A waiver is not effective unless it is in writing and signed by an authorised representative of each party.
- 18.8 Waiver of a power or right is effective only in respect of the specific instance to which it relates and for the specific purpose for which it is given.
- 18.9 Each party must pay its own costs and disbursements connected with the negotiation, preparation and execution of this Agreement.
- 18.10 Each party must do all things and execute all further documents necessary to give full effect to this Agreement.
- 18.11 This Agreement may be executed in any number of counterparts. All counterparts, taken together, constitute one instrument. A party may execute this Agreement by signing any counterpart.
- 18.12 A party shall not perform any actions that are prohibited by local and other anti-corruption or anti-bribery laws ('Anti-Bribery Laws') or other laws that are applicable to it. Without limiting the foregoing, a party must not, directly or indirectly, give, offer, pay, promise to pay, or authorise the payment of money or anything of value to any government official or government employee, to any political party official or candidate for political office or to any other person related to the performance of referral activities under this Agreement in a manner that would violate any Anti-Bribery Laws.
- 18.13 To the extent of any inconsistency between any of clauses 1 to 19 of this Agreement and any Schedule attached to the Agreement, the content in clauses 1 to 19 will take precedence over the content in any Schedule, for the purposes of resolving that inconsistency.

19. GOVERNING LAW AND JURISDICTION

- 19.1 The laws of Victoria, Australia govern this Agreement. The parties submit to the non-exclusive jurisdiction of the courts of Victoria and the Federal Court of Australia.

EXECUTION

EXECUTED as an Agreement on this ____/____/2026

Signed on behalf of **Australian Postal Corporation**
by an authorised representative in the presence of

Signature of witness

ABDUL REHMAN

Name of witness (print)

Signature of authorised representative

MARK FOSTER

Name of authorised representative (print)

Head of Product Specialists

Position held

Signed on behalf of **'Galaxy108 Pty Ltd (Xituan)'** by
an authorised representative in the presence of

Signature of witness

Name of witness (print)

Signature of authorised representative

Name of authorised representative (print)

Position held

SCHEDULE 1: VARIABLE DETAILS

Description	Particulars	
Licensee's Company details	Name:	GALAXY108 PTY LTD
	A.B.N.	21652101641
	A.C.N.	652101641
	Attention:	Yu Tian (Lance)
	Registered Address:	29 Norfolk St, Killara NSW 2071
	Tel No:	0413507623
	Email Address:	partner@xituan.com.au
	Platform Partner Description:	Multi-merchant ecommerce/fulfilment SaaS (Xituan) integrating MyPost Business shipping for onboarded Australian merchants.
Commencement Date	1 October 2026	
Expiration Date	30 September 2031	
Australia Post Representative	Title:	Head of Product Specialists
	Name:	Mark Foster
	Address:	480 Swan St, Richmond, VIC, 3121
	Email:	Mark.Foster@auspost.com.au
Licensee's Representative	Title:	Director
	Name:	Yu Tian
	Address:	29 norfolk st killara, NSW,2071,AU
	Email Address:	lance@xituan.com.au

SCHEDULE 2: INFORMATION SECURITY REQUIREMENTS

INDUSTRY SECURITY STANDARDS

Licensee Security Representative

The Licensee shall designate an information security representative to be responsible for ensuring in relation to the services:

- (a) that specific information security controls and solutions are implemented to meet the requirements of the services;
- (b) the provision and maintenance of agreed information security policies, standards, procedures and solutions;
- (c) provision of support and advice to Licensee staff to implement the levels of security in line with this Agreement;
- (d) Licensee staff understand why security is needed and what their responsibilities are; and
- (e) to act as a single point of contact for Information Security matters relating to Australia Post

Information Security Incident Management & Reporting

- (a) The Licensee must be able to identify, respond and investigate Information Security Incidents.
- (b) The Licensee agrees to and must report any Information Security Incident, to Australia Post within 24 hours of being aware of an incident that is occurring or has occurred. Examples of Information Security Incidents include, but are not limited to:
 - A. loss or unauthorised disclosure of Australia Post Confidential or Personal Information;
 - B. unauthorised access to Confidential or Personal Information, or computer networks, systems or physical locations hosting or storing such information;
 - C. virus attack or malicious code;
 - D. equipment loss, where such equipment has been used to store, transmit or process Confidential or Personal Information; and
 - E. any other incident that could reasonably damage, harm or impact Australia Posts reputation or regulatory compliance obligations.
- (c) The Licensee must immediately, at its own expense and with as much assistance as practicable from Australia Post, commence an investigation to identify, prevent and mitigate the effects of any such Information Security Incidents.
- (d) Information Security Incidents must be documented in a report and provided to Australia Post within 5 days of an incident occurring. The report must contain details of the incident, impact and any remediation activities performed.

SCHEDULE 3: PROCESS FOR APPROVING LICENSEE'S 3RD PARTY PLATFORMS ("3PPLATFORMS")

Where the Licensee wishes to obtain Australia Post's approval to give access to Australia Post's APIs under clause 4.1 of this Agreement to a party that does not have an existing technical or commercial relationship with Australia Post and who is a shipping aggregator, e-commerce platform provider, intermediary, parcel data management platform, or similar provider (a "3PPlatform"), the following process will be followed and the following requirements will be met:

1. The Licensee will provide written notice to Australia Post that it wishes to seek approval of a 3PPlatform.
2. Such notice will include the identity of such 3PPlatform and whether the 3PPlatform will be providing "white labelled" or "grey labelled" services to End Users (as those terms are described in point 8 below). If requested by Australia Post, the Licensee will facilitate an introduction between Australia Post and such 3PPlatform
3. Australia Post establishes API Licence, Services and Marketing Agreement with the 3PPlatform
4. The API integration from the 3PPlatform to Australia Post via the Licensee needs to be verified. The Licensee will use its commercially reasonable efforts to facilitate this verification. If any technical issue arises associated with the 3PPlatform's integration to Australia Post via the Licensee, the Licensee will use its commercially reasonable efforts to remediate such issues.
5. The Licensee acknowledges that the provisions of clause 4 of the Agreement will apply to all 3PPlatforms who are approved under this clause, including without limitation clause 4.10, that Australia Post will have a direct relationship with Authorised End Users of the 3PPlatform; and that Australia Post's charges for the Australia Post Services under clause 4.6 will be disclosed accurately and separately.
6. Australia Post will have the right to terminate the integration of a 3PPlatform and its access to the APIs where it finds on reasonable grounds that such 3PPlatform is in breach of the provisions of clause 4 or any other provisions of the Agreement.
7. The parties acknowledge that the provisions of this Schedule do not cover access to the APIs to any peer-to-peer marketplace. The parties agree in good faith to further amend this Schedule if the Licensee's technology is ever able to support a peer-to-peer marketplace in a manner that complies with the terms and conditions of the Agreement.
8. "White Labelled" and "Grey Labelled": a 3PPlatform that is "**White Labelled**" is one that supports Australia Post using the Licensee's Services without presenting the Licensee as the powering technology and/or is otherwise self-branded and appears to be powered by such Platform's own technology. A Platform that is "**Grey Labelled**" is one that supports Australia Post using the Licensee's Services where the Platform's End User is required to create a unique account with the Licensee (and thus is aware that the Licensee's Services are powering the connection).